

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/04/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0002018

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PETITIONER: CHRISTIAN E. OLIVA
FLORES, ET AL

vs.

DEFENDANT: NATIONAL RESPONSE
TEAM LLC, ET AL

NATURE OF PROCEEDINGS: HEARING – OTHER: HEARING AFTER JURY VERDICT

RULING

After considering all the evidence presented at trial and the arguments of counsel, the Court provides the following additional award:

1. Waiting-Time Penalties

The Court finds that Defendant National Response Team, LLC failed to pay all wages due to Plaintiffs at discharge and that Plaintiffs are entitled to waiting-time penalties under Labor Code section 203. Accordingly, the Court awards waiting-time penalties against Defendant National Response Team, LLC as follows:

Christian E. Oliva Flores: **\$5,280**

Luis David Perla Monterroza: **\$5,280**

(*Mamika v. Barca* (1998) 68 Cal.App.4th 487, 493.)

2. Wage-Statement Penalties

The Court finds that Defendant National Response Team, LLC issued inaccurate wage statements to Plaintiffs and that Plaintiffs are entitled to wage-statement penalties under Labor Code section 226. The Court awards wage-statement penalties against Defendant National Response Team, LLC as follows:

Christian E. Oliva Flores: **\$4,000.00**

Luis David Perla Monterroza: **\$4,000.00**

3. Prejudgment Interest

The Court finds that Plaintiffs are entitled to prejudgment interest on the jury's unpaid-wage awards at the legal rate of 10% per annum from the date of the failure to pay through the date of final judgment.

4. UCL Claim and Equitable Relief

The Court finds in favor of Plaintiffs and against Defendant National Response Team, LLC on Plaintiffs' claim under Business and Professions Code section 17200 under the unlawful prong, based on the wage-payment, payroll, OT2/double-time, and wage-statement practices shown by the jury's unpaid-wage findings, the admitted records, and the trial testimony.

Defendant National Response Team, LLC is ordered to maintain payroll, timekeeping, and wage-statement procedures reasonably designed to:

1. accurately capture and preserve regular-time, overtime, and double-time/OT2 hours;
2. accurately transmit regular-time, overtime, and double-time/OT2 hours to any payroll provider, including BBSI or any successor payroll provider;
3. pay all regular-time, overtime, and double-time wages at the applicable lawful rates;
4. issue wage statements that separately identify all applicable hourly rates and the corresponding number of hours worked at each rate, including double-time/OT2 where applicable; and
5. review payroll submissions before wages and wage statements are issued to ensure that double-time/OT2 hours reflected in the timekeeping system are accurately paid and accurately itemized on wage statements.

Defendant National Response Team, LLC shall provide Plaintiffs, through counsel, a one-time written certification of compliance within **60 days** confirming that the above procedures are in place. No ongoing reporting or continuing Court supervision is ordered.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272
Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/04/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0009955

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PETITIONER: IH PROPERTIES, LP ET
AL

vs.

DEFENDANT: CARON SCHMIERER, AS
EXECUTOR OF THE ESTATE OF
MARGARET GRADE, DECEASED ET AL

NATURE OF PROCEEDINGS: MOTION -ANTI SLAPP 425.16

RULING

Defendant Daniel DeLong's ("DeLong") anti-SLAPP motion to strike is **GRANTED** as to the Third and Fourth Causes of Action in their entirety and otherwise **DENIED** as moot. (Code Civ. Proc., § 425.16, subd. (b)(1).) The effect of this ruling is to dismiss DeLong as a defendant in this action.

DeLong is a "prevailing defendant" on this motion and so is entitled to recover his attorney's fees and costs. (Code Civ. Proc., § 425.16, subd. (c)(1).) He may do so through a subsequent noticed motion. (*American Humane Ass'n v. Los Angeles Times Communications* (2001) 92 Cal.App.4th 1095, 1103.)

Background

This case arises out of Plaintiffs IH Properties, LP and Manka's Holdings, LLC's ("Plaintiffs") purchase of a portfolio of properties in West Marin. The purchased properties include Druid's Hall, an inn; Hotel Olema; Sir & Star, a restaurant on the ground floor of Hotel Olema; Manka's, another hotel; and Balmoral, a small inn. (Complaint, ¶¶ 18-22, 25.) Plaintiffs allege that on January 24, 2022, they entered into a purchase agreement for the properties (the "Purchase Agreement") with First Valley Four, LLC; Manka's Inverness Lodge, LP; and Margaret Grade ("Grade"; these three together, "Sellers"). (*Id.* at ¶ 2, 25.)

Ms. Grade, a well-known hotelier and chef, passed away in February 2024 following a car accident. (*Id.* at ¶¶ 1, 56.) Ms. Grade's estate (the "Estate") is a party to this case through Caron Schmierer, who is named as a defendant in her capacity as executor. (*Id.* at ¶ 7.) The complaint describes DeLong as an individual who has been in litigation with the Estate involving claims